

LW6102E: INTRODUCTION TO COMMON LAW SYSTEM AND METHODOLOGY

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Introduction to Common Law System and Methodology

Subject Code

LW - Law

Course Number

6102E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

Non-standard Duration

Other Course Duration

4 weeks

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW6181E, LW5622, LW5653

Exclusive Courses

Nil

Part II Course Details

Abstract

This course is a bridging course for students admitted to the LLM programme and with their LLB obtained from non-common law jurisdictions so as to equip them to embark on their LLM study under the common law jurisdiction. There are three principal objectives.

The first objective is to introduce students to the common law system in Hong Kong under the following themes:

- a. The sources of law, their hierarchy, and their makers;
- b. A brief history of the common law system, and its emphasis on precedents; and
- c. An overview of the key elements of the legal system in Hong Kong.

The second objective is to equip students with skills in reading and interpreting the different parts of any given judgment. Examples will be drawn from both private and public law so that students acquire a sense of how public law analyses differ from private law analyses, and how ratio decidendi is distinguished from obiter dictum.

The third objective is to equip students with the skills for reading and interpreting statutes. Students will be taught the legislative process so as to enhance their application of such skills in relation to statute law. They will be introduced to the general principles of statutory interpretation with focus on the development of the conventional rules to the contextual/purposive approach adopted in the more recent cases, and the relevance of legislative intent that could be ascertained from the statutes and official record of legislative proceedings. They will be required to apply these principles to selected statutes in class discussions.

The course will be conducted through the Socratic Method.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Demonstrate an understanding of the common law tradition, its methods, and its relevance to the Hong Kong legal system.	25	x		
2	Describe the different sources of law and how they are used in cases.	25	x	x	
3	Develop the ability to distinguish statements of facts, statements of law, and ratios in case laws and apply them to problem questions to resolve them.	25		x	x
4	Develop the skills and apply general principles of statutory interpretation to real-life statutes.	25	x		x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Seminar	- Students will be introduced to principles related to the common law legal system; - Students are encouraged to actively participate during in-class discussions on evaluating, critically analysing, and developing a working knowledge of how to conduct legal research;	2, 3, 4	
2	Seminar	Students will be introduced to methods for critically evaluating case law, Hong Kong ordinances, and subsidiary legislation, extracting key legal principles, extracting the ratio of a case, and applying both statutory and case law authority to the analysis of legal issues.	3	
3	Class Discussions	Through class discussions, students are encouraged to engage, participate and develop an attitude of curiosity, critical thinking, analytical reasoning and creative problem-solving.	1, 4	
4	Readings	Readings will be assigned in preparation for class.	2, 3	
5	Library workshops	- Students will be introduced to the following topics by the Law Librarian: - Case law research (2 hours) - Finding legislation and citing legal information (2 hours) - Research on secondary sources (2 hours)	1, 2, 3, 4	

Additional Information for LTAs

Duration of course: 4 weeks.

Course teaching methods: This course will use a seminar-based approach that integrates in-class discussions and guest lectures, giving students full opportunity to achieve the CILOs of the course. Students will be encouraged to raise questions and stimulated to engage in discussions so as add value to the class; contributing to the understanding of the course contents and their application to factual scenarios.

Students are encouraged to form study groups with their classmates and conduct group learning outside of the classroom.

Continuous Assessment (%)

0

Examination (%)

100

Examination Duration (Hours)

2

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Grading of student achievement is based on the City University of Hong Kong's assessment policy as outlined in the University Assessment Policy and Principles for Taught Programmes as well as other relevant academic regulations. Grading is based on student performance in the end-of-course examination.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain an overall mark of 40% or above in order to pass the course.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain an overall mark of 50% or above in order to pass the course.

Assessment Rubrics (AR)

Assessment Task

End-of-Course Open-Book Examination (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Ability to identify and address the right issues in the problems;

Ability to analyse, argue and present original thinking;

Ability to apply accurately the relevant laws to the analyses and arguments;

Ability to present views and arguments clearly within a prescribed time under pressure.

Excellent

(A+, A, A-) Excellent student performance with respect to the achievement of the applicable CILOs.

Good

(B+, B, B-) Good student performance with respect to the achievement of the applicable CILOs.

Fair

(C+, C, C-) Fair student performance with respect to the achievement of the applicable CILOs.

Marginal

(D) Marginal student performance with respect to the achievement of the applicable CILOs.

Failure

(F) Student failed to achieve the applicable CILOs.

Assessment Task

End-of-Course Open-Book Examination (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Ability to identify and address the right issues in the problems;
Ability to analyse, argue and present original thinking;
Ability to apply accurately the relevant laws to the analyses and arguments;
Ability to present views and arguments clearly within a prescribed time under pressure.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

Common law tradition, sources of law, common law processes, case law, statutes, legislation, judicial reasoning, custom, conventions, legal reasoning, legal interpretation, statutory interpretation, binding precedent, legal research, legal writing, case analysis, law reports, codified and uncoded, hierarchy of the courts, ratio decidendi, abstraction of judicial reasoning, obiter dicta, stare decisis.

Detailed Syllabus

The major topics covered in the course include (in substance), but are not limited to, the following:

- a. Origins of the Common Law – Concepts, its Structure and comparison with civil law and codified systems
- b. the English Legal System and the common law tradition -Major Legal system of the world and distinctions from civil law- Hong Kong system, its court system and legislature
- c. Overview of the Hong Kong Legal System
- d. Principles of legal research and reading in common law – sources of law – finding and reading the law – judicial impartiality and the objectivity of legal reasoning.
- e. The origin, growth and organization of the courts in common law jurisdictions; courts, tribunals and decision-making bodies.
- f. Judge-made law including matter of law, legal reasoning, precedents, Stare decisis.
- g. Judicial activism, judicial law making - Ratio decidendi and obiter dictum.
- h. Overview of constitutional interpretation
 - i. Legal methods from constitutional law perspective – doctrine of rule of law, legislative Supremacy of Parliament and the doctrine of the separation of powers – doctrinal conflict which courts have to resolve.
 - j. Statute law and statutory interpretation and legislative intention
- k. Rules of statutory interpretation, technical meanings, Analysis in the Context and anatomy of a statute –I
 1. Rules of statutory interpretation, technical meanings, Analysis in the Context and anatomy of a statute - II

Reading List

Compulsory Readings

Title	
1	Course Pack: Students will be given further readings from a variety of sources, where applicable. Where appropriate, copies of readings will be made available to the students either through the library catalogue, internet links or by lodging materials with the library's semi-closed collection.
2	John BAHRIJ, 'Hong Kong Research: Methods and Skills, (Sweet and Maxwell, 2007)
3	Kent Greenawalt, Statutory and Common Law interpretation New York: Oxford University Press, 2013
4	Calleros, Charles R, Legal method and writing 6th ed. New York, NY: Aspen Publishers, 2011
5	Wesley-Smith, P. An Introduction to the Hong Kong Legal System, Hong Kong, Oxford University Press
6	Eric C Ip, Law and Justice in Hong Kong, Principles of the Legal System (4th Edition) Sweet & Maxwell.
7	Hanson S (et al), 5th edn, Learning Legal Skills and Reasoning (2021) (London, Routledge)

Additional Readings

Title	
1	Students may consult one of several textbooks listed below. As far as possible, reading materials will be made available to students.
2	Abel, R.L. and Lewis, P.S., ed., The Common Law World (1988)
3	Baker, J.H., The Legal Profession and the Common Law (1986)
4	Becker, Carl L. The Declaration of Independence: A Study in the History of Political Ideas (New York: Alfred A. Knopf, 1956 [1st ed., 1922].)
5	Bowen, Catherine Drinker. Miracle at Philadelphia: The Story of the Constitutional Convention, May to September 1787 (Boston: Little, Brown Co., 1966)
6	Brant, Irving. The Bill of Rights: Its Origin and Meaning (New York: New American Library, 1967 (paperback); Indianapolis: Bobbs-Merrill, 1965 (hardback))
7	Corwin, Edward D. The "Higher Law" Background of American Constitutional Law (Ithaca, N.Y.: Cornell University Press, 1955)
8	Hogue, A.R., Origins of the Common Law (1966)
9	Holmes, O.W., The Common Law (1881; new ed., ed. by M. DeWolfe Howe, 1963, repr. 1968)
10	Levy, Leonard W. ed. Essays on the Making of the Constitution (New York: Oxford University Press, 1969)
11	McDonald, Forrest. We the People: The Economic Origins of the Constitution (Chicago: University of Chicago Press, Midway Reprint Series, 1976 [1st ed. 1958])
12	Morris, Richard B. Seven Who Shaped Our Destiny (New York: Harper & Row, Publishers, 1973)
13	Plucknett, T.F., Concise History of the Common Law (5th ed. 1956)
14	Potter, H., Historical Introduction to English Law and Its Institutions (4th ed. 1958)
15	Rakove, Jack N. The Beginnings of National Politics: An Interpretive History of the Continental Congress (New York: Alfred A. Knopf, 1979).
16	van Caenegem, R.C., The Birth of the English Common Law (1973)
17	Wood, Gordon S. The Creation of the American Republic, 1776-1787 (New York: W. W. Norton, 1972 [1st ed., 1969])
18	Holland, J.A. & Webb, J.S. Learning Legal Rules, London, Blackstone
19	Zander, M. The Law Making Process, London, Butterworths
20	Diggory Bailey & Luke Norbury, Bennion on Statutory Interpretation, 7th Edition, LexisNexis
21	Resources (Online):
22	Guides compiled by Library's Law Section (Students' Guides to Legal Materials of Hong Kong, Student Guides' to Legal Materials of the UK)

23	Databases that are openly accessible: BLIS (Bilingual Laws Information System), Judgment and Legal Reference, HKLII (Hong Kong Legal Information Institute), Hansard (Hong Kong), legislation.gov.uk, British and Irish Legal Information Institute (visit http://www.cityu.edu.hk/lib/collect/law/subjres/lawlink.htm)
24	HK Judiciary Web (http://www.judiciary.gov.hk/en/index/)
25	UK Courts and Tribunals (http://www.judiciary.uk)
26	Access to Library Resources:
27	Students will have the opportunity to attend a tour of the library during the course. Students should take full opportunity to take a library tour. The legal research skills elements of the course will involve extensive use of the library and its materials. The law library will instruct students on how to access other libraries and facilities within and outside Hong Kong.
28	The Law Library has an excellent collection of legal materials in print copy and electronic format. Some important databases include:
29	· Hong Kong E-Legislation (HKeL) which contains the statutory Laws of Hong Kong and selected constitutional documents.
30	· Lexis/Nexis
31	· Westlaw
32	· Law Library Electronic Databases that include Index to Legal Periodicals and Index to Foreign Legal Periodicals, Latest Judgement Alert, Hong Kong Premium Service, Hansard U.K.
33	CD-ROM' s include British Hansard, LEXIS/NEXIS, the Laws & Regulations of China, and the European Union Laws Library. There are also databases in Chinese as well as print format copies of Chinese law.
34	For full list of databases subscribed by the Library visit this web page: http://www.cityu.edu.hk/lib/collect/law/subjres/lawdb.htm